

HOUSE No. 3994

The Commonwealth of Massachusetts

PRESENTED BY:

Rita A. Mendes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to insurance settlements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rita A. Mendes</i>	<i>11th Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 3994

By Representative Mendes of Brockton, a petition (accompanied by bill, House, No. 3994) of Rita A. Mendes relative to worker related insurance settlements. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to insurance settlements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Paragraph (1) of section 48 of chapter 152 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the first sentence the following 3
3 sentences:- The employer shall be notified in writing of such payment by the insurer by way of a
4 lump sum agreement and shall have 30 days to consent in writing or object in writing to the lump
5 sum agreement. After the passage of 30 days, if the employer does not object or consent in
6 writing to the proposed lump sum agreement, then the employer's consent is not required. In this
7 event the insurer shall file an affidavit, to be attached to the lump sum agreement papers as an
8 exhibit that states: (i) the employer has been notified of the proposed lump sum agreement; (ii)
9 no written objection has been received by the employer; and (iii) 30 days has passed from the
10 date of mailing of the notice to the employer.